

HOUSE BILL No. 1036

DIGEST OF INTRODUCED BILL

Citations Affected: IC 31-25-2-11.1.

Synopsis: Children in need of services. Requires the department of child services (department) to conduct an in-person assessment: (1) before closing an investigation involving a child who the department has reason to believe is a child in need of services (CHINS); and (2) before recommending discharge of the child who is the subject of an open CHINS case with the juvenile court.

Effective: July 1, 2026.

Garcia Wilburn, Burton

December 1, 2025, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1036

A BILL FOR AN ACT to amend the Indiana Code concerning family law and juvenile law.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 31-25-2-11.1 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 11.1. (a) Before the department**
4 **closes an investigation involving a child who the department has**
5 **reason to believe is a child in need of services, the department shall**
6 **conduct an in-person assessment with the child not more than five**
7 **(5) business days before closing the investigation.**
8 **(b) Before the department recommends discharging a child who**
9 **is the subject of an open child in need of services case pending**
10 **before a juvenile court, the department shall conduct an in-person**
11 **assessment with the child not more than five (5) business days**
12 **before recommending discharge of the child.**

